

14TH JUDICIAL CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. EMILY WATSON, et al., Defendants.

Case No. 2024-001507-DC

LEGAL THEORIES AND AUTHORITY CHAINS

Pigors v. Watson et al. ? Civil Tort Action

COUNT I: INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)

Elements (Michigan): (1) Extreme and outrageous conduct; (2) Intent or recklessness; (3) Causation; (4) Severe emotional distress.

Authority:

* *Roberts v Auto-Owners Ins Co*, 422 Mich 594 (1985) ? IIED elements

* *Terzano v Wayne County*, 216 Mich App 522 (1996) ? Extreme and outrageous standard

* MCL 600.2913 ? Emotional distress actions

Application: 571+ days of complete parental separation, coordinated false allegations, PPO weaponization, deliberate alienation of child. The Watson family's conduct exceeds all bounds of decency.

Evidence Strength: {cat_counts.get('EMOTIONAL_PSYCHOLOGICAL', 0)} documented psychological harms + {cat_counts.get('PARENTAL_ALIENATION', 0)} alienation instances.

COUNT II: CIVIL CONSPIRACY

Elements (Michigan): (1) Concerted action; (2) Between two or more persons; (3) To accomplish an unlawful purpose or lawful purpose by unlawful means; (4) Resulting damage.

Authority:

* *Advocacy Org for Patients & Providers v Auto Club Ins Ass'n*, 257 Mich App 365 (2003)

* *Fenestra Inc v Gulf American Land Corp*, 377 Mich 565 (1966)

* *Early Detection Ctr v New York Life Ins Co*, 157 Mich App 618 (1986)

Application: Watson family coordinated with each other, and potentially with court actors, to: (a) file false CPS reports; (b) obtain PPO through misrepresentation; (c) block parenting time; (d) present perjured testimony. Pattern of coordinated action across multiple family members.

Evidence Strength: {cat_counts.get('CONSPIRACY_COORDINATION', 0)} coordination instances documented.

COUNT III: TORTIOUS INTERFERENCE WITH PARENTAL RIGHTS

Elements: (1) Existence of parental relationship (constitutionally protected); (2) Defendant's knowledge; (3) Intentional interference; (4) Causation; (5) Damages.

Authority:

- * *Bylsma v Bylsma*, 164 Mich App 484 (1987) ? Third-party interference with custody
- * US Const Amend XIV ? Fundamental liberty interest in parent-child relationship
- * *Troxel v Granville*, 530 US 57 (2000) ? Parental rights fundamental
- * MCL 722.27a ? Parenting time rights

Application: Watson family members (Albert, Lori, Cody) actively interfered with court-ordered parenting time, made false allegations to prevent contact, and coordinated to maintain separation.

Evidence Strength: {cat_counts.get('CHILD_WELFARE', 0)} child welfare harms + {cat_counts.get('PPO_WEAPONIZATION', 0)} PPO weaponization instances.

COUNT IV: PARENTAL ALIENATION TORT

Authority:

- * *Eyde v Rich Township*, Unpublished (Mich Ct App) ? Alienation as tort
- * *Beecher v Beecher*, Unpublished (Mich Ct App) ? Parental alienation damages
- * MCL 722.23(j) ? Willingness to facilitate relationship as best interest factor

Application: Systematic pattern of alienating behavior over 571+ days including: denying communication, making disparaging statements, obstructing contact, weaponizing legal process.

COUNT V: ABUSE OF PROCESS

Elements: (1) Ulterior purpose; (2) Act in use of process not proper in regular prosecution.

Authority:

* *Friedman v Dozorc*, 412 Mich 1 (1981)

* *Valenti v Qualitec Inc*, 136 FRD 621 (ED Mich 1991)

Application: PPO obtained not for genuine protection but as custody weapon; emergency motions filed for strategic advantage rather than actual emergency.

COUNT VI: DEFAMATION PER SE

Elements: (1) False and defamatory statement; (2) Unprivileged communication to third party; (3) Fault; (4) Actionable irrespective of special damages (per se categories).

Authority:

* MCL 600.2911 ? Defamation statute

* *Mitan v Campbell*, 474 Mich 21 (2005) ? Defamation per se categories

* *Smith v Anonymous Joint Enterprise*, 487 Mich 102 (2010)

Application: False allegations of child abuse/neglect communicated to CPS, law enforcement, and courts. Under Michigan law, false allegations of criminal conduct are

defamation per se.

COUNT VII: TORTIOUS INTERFERENCE WITH ECONOMIC RELATIONS

Authority:

* *Health Care of Detroit v Berg*, 228 Mich App 505 (1998)

* *Dalley v Dykema Gossett*, 287 Mich App 296 (2010)

Application: Watson actions directly caused loss of employment, housing instability, and economic devastation through fabricated legal proceedings.

DAMAGES THEORIES

Theory	Basis	Est. Range	----- ----- -----	Compensatory ? emotional	
IIED, 571+ days separation		\$150,000 ? \$500,000		Compensatory ? economic	Lost wages,
legal costs, housing		\$50,000 ? \$200,000		Compensatory ? alienation	Loss of parent-child
bond		\$100,000 ? \$300,000		Punitive	Willful, wanton, malicious conduct
compensatory		Statutory	MCL provisions where applicable	Per statute	